

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

FA2487-20-D-0005 Fifth Generation Datalinks Support

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [DAFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☒ > \$750K and ≤ \$15M ☐ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: AFTC/PZZC Eglin Air Force Base, FL

Purchase Request (if available) / Local ID Number: Authority to Advertise dated 14 Aug 2024 located in the contract file.

Program / Project (and PE, if applicable): F-35 Comm Nav Identification (CNI) 3A and 3B Racks

Program Type (PEO, Enterprise, of Operational): Other Contracting

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ [REDACTED] J&A Type: ☐ Class ☒ Individual

COORDINATION ([DAFFARS 5306.304\(a\)](#))

[Sign and Save Procedure](#)

** The text in the signature blocks below is editable, including the title.

** To remove a row, click the "X" next to the signature block. **CAUTION:** Once [REDACTED]

[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

[REDACTED] | [REDACTED]

[REDACTED]	[REDACTED]	[REDACTED]
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I. Agency and Contracting Activity.

Air Force Materiel Command (**AFMC**), Air Force Test Center (AFTZ/PZZC-Eglin), Enterprise Services and Innovative Solutions Branch, 205 West D. Avenue, Building 350, Eglin AFB, FL 32542 is responsible for the proposed contracting action.

II. Nature and/or description of the action being approved.

The 46th Test Squadron (46TS/TGBC) has identified a need to upgrade the Communication, Navigation, and Identification (CNI) 3A and 3B racks located in Building 73 of the Datalinks Test Lab (DTL) at Eglin AFB, FL. The action will require the contractor, Northrop Grumman Corporation (NGC), located in Rancho Bernardo, CA to replace the existing Catbird (CATB) test equipment with the updated/upgraded 3A and 3B racks so the 46TS can move forward to Block 4 of the F-35 upgrades. The replacement 3A and 3B racks will be used in a lab environment and will be populated with the modules necessary to perform Multi-functional Advanced Datalinks (MADL), Link-16, and Variable Message Format (VMF) waveforms simultaneously. The proposed contract action will be awarded as a sole source firm fixed price contract. The contractor will be the NGC, a large business concern located at 15120 Innovation Drive, San Diego, CA 92128, Cage Code 0RBN7, telephone 858-592-3220.

It should be noted that Lockheed Martin Corporation is the OEM for the F-35 aircraft and the overall prime contractor. However, NGC is the sole source for ASQ-242 CNI Avionics Suite installed on the F-35 aircraft, and the Freedom 500 series radios.

The DTL is the Air Force's premier C4ISR test squadron and is the responsible test organization for software performance monitoring and testing, and leads in interoperability and capability-based testing. The DTL hosts the Gulf Common Net, a combined operational, training, and test airborne network for the F-35's MADL. This network enables testing of the latest technologies in gateways, radios, waveforms, and languages in an operationally representative environment. The 46TS primary focus is F-35 testing on the Northrop Grumman furnished CNI avionics suite installed on the respective aircraft.

III. Description of supplies/services required to meet agency needs.

The subject requirement is for the replacement of existing CATB equipment within the Building 73 DTL at Eglin AFB, FL in order to move forward to the upcoming Block 4 configuration. As part of the rack replacement, the contractor will be required to populate the replacement racks with modules necessary to perform MADL, Link 16, and VMF waveforms simultaneously. The hardware configuration dates back to 2009 and was based on F-35 Technical Refresh-1 technology. Subsequent to taking delivery of the government furnished equipment, the F-35 Program Office was working toward Technology Refresh-3 (TR-3) which was completed in July 2024. TR-3 was done to enhance the F-35 fleet with better displays, computer memory, and processing power. The scope of this requirement is to bring the racks to the TR-3 configuration and upgrade the racks with the most current software. The 3A and 3B racks require the upgrade to TR-3 immediately in order to have the ability to perform block 4 upgrades in the future to stay current with the fleet. As part of the rack replacement, the contractor will be required to populate the replacement racks with modules necessary to perform MADL, Link 16, and VMF waveforms simultaneously. The following matrix is the anticipated bill of material for the upgraded 3A and 3B racks:

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NOMENCLATURE	PART NUMBER	LOC AND QTY		
		3A	3B	EXT
CNI 3A RACK	2ZKH45800-0003	1		
CNI 3B RACK	2ZKH45900-0003		1	
LOW VOLTAGE POWER SUPPLY	PL38647	2	2	
HIGH VOLTAGE POWER SUPPLY	PL38648	1	2	
UHF/VHF PRE-SELECTORT	2ZKH45110-0005	1	1	
DUAL CHANNEL TRANSCEIVER	2ZKH45030-0005	3	1	
TIME FREQUENCY REFERENCE	2ZKH45110-0004	1	1	
CONTROILLER, CNI	2ZKH45011-0001	1	1	
CNI PROCESSOR	2ZKH45023-0301	3	2	
LOW BAND PRE-SELECTOR	2ZKH45070-0005		1	
L BAND POWER AMP	2ZKH45061-0001		1	
UHF/VHF POWER AMP	2ZKH45120-0006	1		
AUDIO CONTROL ELECTRONICS	2ZKH43101-0001			1

The estimated total value of the contract is [REDACTED] and the period of performance will be 12 months after receipt of order. The appropriation that will be used to fund this requirement will be Research Development Test & Engineering (RDT&E) (AF 3600) funds.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

This requirement stems from the necessity to upgrade a portion of an existing system designed by NGC. As the sole-source producer and prime integrator of the F-22 and F-35 AN/ASQ-242 CNI Avionics Suite, NGC is the only contractor in possession of the technical expertise, proprietary documentation and source code, detailed system and sub-system knowledge, and necessary support infrastructure (i.e. operations, design, classified and unclassified facilities, integration of aircraft avionics and maintenance support procedures) required to successfully execute the subject contract. NGC holds all technical data and design details as proprietary information. Therefore, procurement data and specifications are not available for a competitive procurement of the FGDS support maintenance/upgrades. While the Air Force has government purpose rights of the data, the Air Force did not purchase a re-procurement package that would authorize an alternate source to use the NGC developed technical data required to make or buy required FGDS hardware or components. No other known source exists capable of meeting the subject requirement.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

NGC was identified as the sole source for the CNI Avionics as part of the source selection process for the FGDS Sustainment support. NGC has been the sole source throughout the F-35 test efforts performed by the DTL. The 3A and 3B racks are part of the CNI system that is proprietary to NGC. On 15 January 2025 the government sent an e-mail to NGC to inquire if the products under this requirement were specific to NGC and proprietary in nature. Additionally, NGC was asked if they had, or intended to have authorized distributors or service providers for the subject requirement in the foreseeable future. NGC confirmed the components are proprietary in nature and they do not intend to have authorized distributors or service providers related to the subject requirement or the systems it supports. As described in section VII & X below, it would be impracticable to post a sources sought because NGC is currently the only Lockheed Martin authorized provider of CNI avionics systems. Therefore a sources sought will not be posted. A notice of intent to award a sole source contract will be posted to Sam.gov at time of solicitation.

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VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer has determined that the Government can obtain and negotiate fair and reasonable prices for efforts under this contract. Thorough technical and cost analyses will be performed, as necessary, by the AFTC/PZZC contracting office in conjunction with Defense Contract Audit Agency (DCAA) and the Defense Contract Management Agency (DCMA), as required. NGC will be required to furnish certified cost and pricing data for proposals meeting the threshold for submission of such data (FAR 15.403-4). Assist audits, rate reviews, and other evaluations of major subcontracted efforts will be accomplished, as necessary by the cognizant DCAA and DCMA organizations. DCAA and DCMA analyses will be combined with the AFTC/PZZC and 46TS/TGBC analyses and used in the substantiation of fair and reasonable prices. For proposals that fall below the thresholds for submission of certified cost and pricing data, data other than certified cost or pricing data will be obtained from the contractor in sufficient detail to support evaluation by means of cost analysis. The contracting officer will verify that the anticipated cost to the Government is fair and reasonable based on the enterprise assessment of this data. Profit will be determined fair and reasonable by comparison with fee negotiated under similar previous efforts, or through the use of weighted guidelines if no other method exists.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Market research, in accordance with FAR Part 10, was conducted for the most recent IDIQ contract via a sources-sought notice on Contracting Opportunities (beta.SAM.gov) on 07 January 2020. NGC was the only source to respond to the sources-sought notice, and based on this information, NGC was the only source technically capable of meeting the program's requirements. Since Lockheed Martin has taken no action on a CNI Suite re-compete, it can be assumed that NGC would be the only technically capable response to any new sources sought inquiry for this follow-on sustainment contract and performing another sources sought effort would be redundant. Additional market research is not required since NGC has confirmed there is no other vendor authorized to supply the proprietary hardware and software required to meet this requirement (See section VII).

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

Not applicable see section V above.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

See section V & VII above.

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X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

The avionics equipment in support of the subject F-35 CNI effort is almost identical to that of the previous FGDS Sustainment Contract under FA2487-20-D-0005. The 46TS reviews trade journals such as National Defense Magazine and Military & Aerospace Electronics to research F22 and F35 efforts to re-compete aircraft systems. In an August 2018 article in Defense and Military Electronics, Lockheed Martin (F-35 Prime Contractor) reported that they were considering re-competing several avionics systems including the NGC CNI system. To date, the 46TS has no information to suggest Lockheed has made the decision to formally re-compete the CNI avionics. It should be noted that if the system is re-competed and Lockheed selects a new system, it will still take several years (estimated at 5 to 8 years) to fully qualify and integrate the new system into the F-35 fleet. Until such time, NGC remains the sole source provider for the ASQ-242 CNI sustainment, tech support and hardware upgrades. This was confirmed during the most recent sources sought inquiry provided to industry in which NGC was the only respondent. The 46TS will continue to work with the Joint Program Office and DoD to identify alternative solutions for future requirements by conducting market research, monitoring trade journals, and attending symposia as budget allows.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

☒ Remove the Guidance pages below.